

State Terrorism in Latin America
Chile, Argentina, and International Human Rights

Thomas C. Wright

ROWMAN & LITTLEFIELD PUBLISHERS, INC.
Lanham • Boulder • New York • Toronto • Plymouth, UK

ROWMAN & LITTLEFIELD PUBLISHERS, INC.

Published in the United States of America
by Rowman & Littlefield Publishers, Inc.
A wholly owned subsidiary of The Rowman & Littlefield Publishing Group, Inc.
4501 Forbes Boulevard, Suite 200, Lanham, Maryland 20706
www.rowmanlittlefield.com

Estover Road
Plymouth PL6 7PY
United Kingdom

Copyright © 2007 by Rowman & Littlefield Publishers, Inc.

All rights reserved. No part of this publication may be reproduced, stored in a retrieval system, or transmitted in any form or by any means, electronic, mechanical, photocopying, recording, or otherwise, without the prior permission of the publisher.

British Library Cataloguing in Publication Information Available

Library of Congress Cataloging-in-Publication Data

Wright, Thomas C.

State terrorism in Latin America : Chile, Argentina, and international human rights / Thomas C. Wright.

p. cm. — (Latin American silhouettes)

Includes bibliographical references and index.

ISBN-13: 978-0-7425-3720-0 (cloth : alk. paper)

ISBN-10: 0-7425-3720-X (cloth : alk. paper)

ISBN-13: 978-0-7425-3721-7 (pbk. : alk. paper)

ISBN-10: 0-7425-3721-8 (pbk. : alk. paper)

1. State-sponsored terrorism—Chile. 2. State-sponsored terrorism—Argentina. 3. Human rights—Chile. 4. Human rights—Argentina. I. Title.

HV6322.3.C5W75 2007
982.06'4—dc22

2006027745

Printed in the United States of America

∞TM The paper used in this publication meets the minimum requirements of American National Standard for Information Sciences—Permanence of Paper for Printed Library Materials, ANSI/NISO Z39.48-1992.

Acknowledgments
List of Acronyms
Introduction

Part I Human Rights, State
Chapter 1 The Human Rights
Chapter 2 The Latin American

Part II The Dirty Wars
Chapter 3 Chile under State
Chapter 4 The Dirty War in

Part III Justice versus Impunity
Chapter 5 Argentina: The
Transitional Justice
Chapter 6 Chile: Impunity,
Protected Democracy

Conclusion: Chile
International Human

Rivers of Blood: A Comparative Study of Government Massacres (Westport, CT: Praeger, 1995).

22. Studies of state terrorism in Latin America include Juan E. Corradi et al., eds., *Fear at the Edge: State Terror and Resistance in Latin America* (Berkeley: University of California Press, 1992); Cecilia Menjivar and Néstor Rodríguez, *When States Kill: Latin America, the U.S., and Technologies of Terror* (Austin: University of Texas Press, 2005); and Kees Koonings and Dirk Kruijt, *Societies of Fear: The Legacy of Civil War, Violence and Terror in Latin America* (London: Zed Books, 1999).

23. Edward L. Cleary, *The Struggle for Human Rights in Latin America* (Westport, CT: Praeger, 1997); Marjorie Agosin, *Surviving beyond Fear: Women, Children and Human Rights in Latin America* (Fredonia, NY: White Pine Press, 1993).

24. Tolley, *The U.N. Commission*, 55–186. As an example of changes in national jurisprudence, Spain, which would become a major factor in Latin American human rights, enacted legislation in 1985 granting Spanish courts universal jurisdiction in certain categories of crime, including genocide and those whose prosecution is mandatory under international treaties: Richard Wilson, "Prosecuting Pinochet: International Crimes in Spanish Domestic Law," *Human Rights Quarterly* 21, no. 4 (1999): 927–79. Belgium also incorporated universal jurisdiction into its domestic law.

25. See chapters 5 and 6 for the incorporation of international treaties in Argentina and Chile.

26. Naomi Roht-Arriaza, "The Role of International Actors in National Accountability Processes," in *The Politics of Memory: Transitional Justice in Democratizing Societies*, ed. Alexandra Barahona de Brito, Carmen González-Enríquez, and Paloma Aguilar, 40–64 (Oxford: Oxford University Press, 2001).

27. Howard Ball, *Prosecuting War Crimes and Genocide: The Twentieth-Century Experience* (Lawrence, KS: University of Kansas Press, 1999); William Driscoll et al., *The International Criminal Court: Global Politics and the Quest for Justice* (New York: International Debate Education Association, 2004); and Marlies Glasius, *The International Criminal Court: A Global Civil Society Achievement* (New York: Routledge, 2005). See also the entire issue of *The International Review of the Red Cross*, no. 845 (March 2002), titled "Impunity—The International Criminal Court."

28. See Christopher Hitchens, *The Trial of Henry Kissinger* (London: Verso, 2001).

29. Julie A. Mertus, *Bait and Switch: Human Rights and U.S. Foreign Policy* (New York: Routledge, 2004), 51–72 (esp. 51–62); Naomi Roht-Arriaza, *The Pinochet Effect: Transnational Justice in the Age of Human Rights* (Philadelphia: University of Pennsylvania Press, 2005), 190–91.

30. Roht-Arriaza, *The Pinochet Effect*, 140–49; *Los Angeles Times*, January 11, 2004.

31. www.icc-cpi.int/press/pressreleases/107.html (accessed August 8, 2006); *New York Times*, October 7, 2005.

CHAPTER TWO

The Latin American Human Rights Crisis

In some countries of Latin America [the Doctrine of National Security] justifies itself as the defender of the Christian civilization of the West. It elaborates a repressive system, which is in line with its concept of "permanent war."

—Third Conference of Latin American Bishops, "The Puebla Document," 1979¹

There are many people in the country and abroad who, erroneously interpreting the sense of counter-revolutionary warfare, have believed that this action is directed against the people or against important sectors of the population. . . . Nothing is further from the truth.

—Argentine military leadership, 1962²

As demonstrated by the incidences of state terrorism and genocide that have occurred over the past four decades, statements of principle such as the Universal Declaration of Human Rights are little more than empty rhetoric or meaningless pieces of paper unless reinforced by the proper political framework. Even in normal times, in countries where respect for human rights is most deeply ingrained, access to the full exercise of civil and political rights is rationed: the powerful, wealthy, and influential can command respect for the rights promised in their countries' constitutions, while the poor, the minorities, and the uneducated struggle, and often fail, to obtain the same protections. In times of economic, social, or political crisis or perceived danger

to the national polity, the human rights guaranteed in national constitutions and international covenants are easily suppressed. Authoritarian governments routinely trample these rights.

Much of Latin America in the 1970s and 1980s experienced a profound crisis of human rights. This resulted fundamentally from the prevailing political climate, both domestic and international. In countries accounting for over half of Latin America's population, regimes that institutionalized grave human rights violations came to power; in some cases, the repression rose to the level of state terrorism. During this period, all but two South American countries fell under military governance, while in several Central American countries, weak elected governments served at the pleasure of dominant military establishments. Authoritarian rule and the armed forces' commitment to eradicating the political left in their countries, which they perceived as a severe threat to the status quo and the privileges of the elites, led in some cases to the formal suspension of constitutional guarantees, and in others to extraofficial but equally effective suppression of civil and political rights. Political parties, interest groups, and civic institutions opposed to military policies were too weak to offer effective resistance. Moreover, at the onset of the period of repressive rule, there were almost no human rights organizations, and certainly nothing that could be termed a human rights movement, to resist repression and aid its victims.

The alignment of international political forces during the Cold War was likewise detrimental to human rights. The top priority of U.S. Latin American policy from 1959 to 1990 was to dampen the influence of the Cuban Revolution and the appeal of revolution in the hemisphere. Except during the presidency of Jimmy Carter (1977-1981), the United States offered virtually unconditional support to the regimes that suppressed human rights as they persecuted leftist parties and groups. During this period, moreover, there was no international influence capable of countering U.S. hegemony over Latin America.³ The existence of the Inter-American, UN, and nongovernmental framework of standards and monitoring provided a means for disseminating information to the world and bringing pressures to bear for improvements in human rights policies, but the international jurisprudence and institutions for enforcement of human rights law had not yet developed; thus the perpetrators of human rights abuses had little concern about being held accountable for their crimes, and victims had little recourse to outside aid.

Impact of the Cuban Revolution

The catalyst of Latin America's human rights crisis was the Cuban Revolution. The impact of the Cuban Revolution on Latin America posed an unprecedented challenge to the status quo, to the stability of governments, and to the privileges of the elites. The potential spread of Cuban-style revolution beyond the island represented the gravest threat the United States had experienced to its continued economic and geopolitical dominance of the Western Hemisphere. In sum, the Cuban Revolution resounded like an earthquake on the Latin American scene.⁴

In the words of journalist Herbert Matthews, a close observer of Latin America, "January 1, 1959, when Fidel Castro triumphed, began a new era in Latin America."⁵ For the next thirty years, the Cuban Revolution would be the driving force in Latin American politics, first inspiring revolutionary movements and then engendering a strong reaction against both revolution and reform. Particularly in its first five years, Fidel Castro's revolution brought Latin America's social, economic, and political problems into sharp focus. It inspired broad segments of the population—particularly workers, peasants, and youth—to believe that a similar revolution was possible in their countries. Social unrest, the radicalization of politics, mass mobilizations, and insurrections destabilized governments and kept the region in a high state of agitation.⁶

There were several reasons for the Cuban Revolution's enormous impact on Latin America. First, Castro's road to power offered an explicit methodology for successful insurrection: guerrilla warfare. Although greatly oversimplifying the history of the movement that put Castro into power, the generally accepted explanation of his success credited a guerrilla band in the Sierra Maestra mountains, originally numbering no more than twenty men, with defeating the dictatorship of Fulgencio Batista (1952-1958) and its U.S.-trained and equipped forty-thousand-man army after only twenty-five months in the field. This story of the heroic guerrilla, replete with sacrifice, self-abnegation, and steely determination, became central to the lore of the revolution and an irresistible siren song in Latin America. Ernesto (Che) Guevara, the Argentine medical doctor who fought alongside Castro, published a book, *Guerrilla Warfare*, in 1960. Essentially a how-to manual on the guerrilla method of fighting, Che's book became an instant best seller in Latin America. Although *Guerrilla Warfare* argued that the rural guerrilla method could work only against dictatorships such as Batista's, Che quickly modified his position by asserting that Cuban-style insurrection would be

effective anywhere in Latin America if there were willing revolutionaries to carry it out. The story of the Sierra Maestra odyssey, Che's writings, and Castro's repeated exhortations to take up arms, sometimes backed by aid to insurgent movements, constituted a powerful call to revolutionary insurrection. When Castro said, "The duty of every revolutionary is to make the revolution," many Latin Americans listened, and more than a few responded.⁷

Cuba's was Latin America's most thorough social revolution, far surpassing the Mexican Revolution of 1910 in the degree of change it wrought. Moving at impressive speed, Castro essentially extinguished capitalism in Cuba within three years, replacing it with a socialist economy that, despite many shortcomings, delivered work for all, provided free education and health care, subsidized food and housing, and gave a sense of dignity to the common Cuban. His agrarian reform, which expropriated the dominant, largely foreign-owned estates and created an agrarian economy of state farms and individual smallholdings, was a beacon for Latin America's land-starved *campesinos*. As a result of these accomplishments, many among Latin America's poor majority—*campesinos*, workers, and the marginalized masses lacking any semblance of a decent life—came to believe that utopia could be seized by following the Cuban example.⁸

Another major attraction of Castro's revolution was its success in breaking free of U.S. domination. For the first time since the United States had established its hegemony over Latin America in the period between the Spanish American War (1898) and the Great Depression, a country, in this case a small and very proximate country, was successfully able to defy the dictates of Washington and Wall Street by expropriating all U.S. property on the island and forging an alliance with the Cold War nemesis of the United States, the Soviet Union. Given the general Latin American view of the United States as an imperialist power, this was indeed a notable feat in the David-and-Goliath mold. When Castro's forces defeated the U.S.-sponsored Bay of Pigs invasion in April 1961, Castro's popularity with many Latin Americans soared to new heights; he acquired the stature of a second Bolivar—a new liberator of Latin America.⁹

Finally, the style of the revolution complemented its concrete accomplishments, deepening its impact on Latin America. Castro himself was a very charismatic leader whose martial appearance and moving speeches captivated audiences at home and abroad. His flair for publicity, his appetite for taking on the greatest challenges, and his impatience for change kept him and his revolution constantly in the news. The timing of the revolution was also important. It occurred in a period when the great majority of Latin American countries and people lived under democratic rule, a circumstance that allowed the rela-

tively free flow of information and the opportunity to advocate revolutionary positions openly. Further, the recent advent of the cheap transistor radio circumvented the need for electricity and transcended the barrier of illiteracy, allowing news of Cuba to penetrate the most remote corners of the hemisphere.¹⁰

The revolution that freed the island from U.S. domination and established a new society based on an egalitarian model continued, and soon deepened, the suppression of civil and political liberties initiated under the Batista dictatorship that it replaced. As Castro moved further into the Soviet orbit through the 1960s, Cuba's government increasingly adopted the trappings and the substance of its patron. Castro integrated his 26th of July Movement with Cuba's communist party, the Partido Socialista Popular, in 1961. Four years later, he established the Cuban Communist Party as the only authorized political party and continued to suppress civil and political liberties in the name of defending the revolution against its internal and external enemies.

Castro eventually formalized his regime in 1976 with the adoption of a new constitution. In its treatment of human rights, the constitution accurately reflected the realities of the new socialist state. The basic economic, social, and cultural rights enumerated in the Universal Declaration were fully guaranteed without equivocation, and they were quite effectively implemented until the economic crisis of the 1990s: All Cubans have the right to a job (article 44.1), fair pay (article 44.2), free health care (article 49), free education (article 50), and protection in old age (article 47). On the other hand, the constitution lists the essential civil and political rights found in the Universal Declaration, but in each case with caveats that effectively deny their exercise. Free speech and press are recognized "in keeping with the objectives of socialist society" (article 52). Freedom of association is limited to the officially sanctioned mass organizations (article 53). Religious freedom is recognized, but "it is illegal for faith or religious belief to oppose the Revolution" (article 54). No right recognized in the constitution may be exercised "against the existence and objectives of the socialist state nor against the decision of the Cuban people to construct socialism and communism" (Article 61).¹¹ The widely noted and criticized April 2003 crackdown on dissident human rights activists indicates that the status of civil and political rights in Cuba remains essentially unchanged after more than forty-five years of Castro's rule.¹²

The Antirevolutionary Reaction

Long before the 1976 constitution, the regime's move toward communism, with the concomitant extinction of civil and political rights, disappointed many Latin Americans who applauded the changes in Cuban society and the

island's liberation from U.S. domination. Indeed, within two or three years of Castro's accession to power, much of the Latin American democratic left—those who believed social reform and national liberation to be compatible with political democracy—became ambivalent or hostile toward the Castro regime. The human rights issue was important in steering important reformist parties such as Peru's Alianza Popular Revolucionaria Americana (American Popular Revolutionary Alliance, APRA); Venezuela's Acción Democrática (Democratic Action, AD); and Chile's Partido Demócrata Cristiano (Christian Democratic Party, PDC) into opposition against Castro and against the groups within their own countries that advocated Cuban-style revolution.¹³

The democratic left groups were but one element in a broad array of forces opposed to the Cuban Revolution and its influence. The wave of revolution that shook the hemispheric status quo to its foundations spawned a potent wave of reaction. Latin America's wealthy and privileged saw their Cuban counterparts lose their property and status and opt for exile over life under socialism. The religious witnessed the revolution's persecution of the Catholic Church. The Latin American militaries observed the dissolution of the Cuban military and its replacement with Castro's own revolutionary armed forces.

Thus the same Cuban Revolution that mobilized broad segments of the Latin American population for change engendered in other sectors an equally strong determination to fight against revolution—some to prevent the eclipse of the civil and political rights suppressed in Cuba, and others to preserve their privileges and way of life. Whether by conviction or by convenience, opponents of revolution united behind slogans praising democracy and individual rights—to highlight the negative side of the Cuban Revolution. In their zeal to prevent revolution, and in some cases with premeditation, they opened the way for regimes of state terrorism that instituted policies toward civil and political liberties that were as oppressive as Castro's, or more so. And unlike Castro's, these regimes did not trade civil and political rights for economic, social, and cultural rights; they extinguished them all.

The Latin American antirevolutionary reaction relied on the support of the U.S. government, which spared no resource or effort to thwart the spread of revolution beyond Cuba, in alliance with Latin America's elites and armed forces. The Latin American militaries had traditionally played dual roles in national life. Their primary role, according to constitutions and laws, was defense against external threats. Military curricula, training, and equipment were oriented to protecting the country's borders against invasion. In Latin America, however, there was relatively little history of warfare between

neighbors. In the twentieth century, only the 1932–1935 Chaco War that pitted Bolivia versus Paraguay can be counted as a full-scale war.¹⁴

The other role of the armed forces involved national political life. At times, ambitious and self-serving officers seized power in pursuit of their own ends; more commonly, officers took power to guide their countries through times of crisis. For example, the armed forces seized power in many Latin American countries between 1930 and 1932, when the Great Depression caused severe economic dislocations, social tensions, and political instability that existing governments were unable to handle. The military's tutelary role in national political life had deep roots. In some countries, the military considered itself to be the founder of the nation through wars of liberation from Spanish colonial rule, and hence the very essence of the country's identity. Even in those countries that gained independence without war, including Central America and Brazil, the militaries viewed themselves as the guardians of national values and as the ultimate arbiters of the national good. "Most of Latin America, even those nations governed by popularly elected presidents with democratic values, expects the armed forces, 'in crises,' to exercise their 'historical mission' to 'save the patria.'"¹⁵ Most countries' constitutions and laws, moreover, placed these responsibilities in the military's hands.

In the crisis created by the Cuban Revolution, the militaries' role was not to defend borders against Cuban troops. The problem was Cuban-inspired forces within their national borders. While the armed forces were prepared to save the patria again, as they had done previously, the degree of mobilization and radicalization, and in many countries the threat or reality of guerrilla warfare, presented unprecedented challenges. Determined to prevent the spread of revolution, the United States responded with a program to prepare Latin America's militaries for the era of wars of national liberation in the Cold War context. Preparation for defense against the internal enemy had two components: military training in counterinsurgency warfare and the teaching of national security doctrine.

National security doctrine was not unknown in Latin America prior to the 1960s. French theorists had written extensively on the new approaches adopted in their country's nonconventional colonial wars in Vietnam and Algeria. Homegrown concepts of national security had been formulated in professional military schools and war colleges in several Latin American countries. But the ascendancy of national security doctrine within Latin America's armed forces was, above all, the result of U.S. resolve to prevent communist revolution in the hemisphere.¹⁶

Even before Fidel Castro's accession to power, the United States had begun adjusting its military doctrines to the new times. At the onset of the

Cold War, U.S. defense doctrine had focused on the external threat from the Soviet Union. The 1947 Rio Pact had been adopted to implement the concept of collective hemispheric security against potential external aggression by the USSR. But by the early 1950s, a new kind of threat to the regional status quo had emerged. In Guatemala, the reformist Jacobo Arbenz government (1950-1954) violated the two pillars of U.S. foreign policy: it expropriated large tracts of land owned by a U.S. corporation, United Fruit Company, without offering compensation satisfactory to the company; and it showed a softness toward communism by allowing Communist Party members to hold positions of influence in government and by purchasing arms from Communist Czechoslovakia.

To justify the overthrow of Arbenz, the Eisenhower administration pressured the Latin American countries to endorse a Cold War corollary of the Monroe Doctrine, a foreign policy extension of McCarthyism. The 1954 Declaration of Caracas substituted "international communism" for the European monarchies that President Monroe in 1823 had declared incompatible with the institutions of the Western Hemisphere and warned to stay away. The Caracas document stated that "the domination or control of the political institutions of any American state by the international communist movement . . . would constitute a threat to the sovereignty and political independence of the American states, endangering the peace of America."¹⁷ By equating internal subversion with international communist penetration, the Declaration of Caracas shifted the military's focus from external defense to internal security.

The United States viewed the Cuban Revolution's threat to Latin America through the prism of the Caracas Declaration. It was not an invasion by Cuban forces but the rise of militantly pro-Castro "subversives" that constituted the threat to U.S. interests and the Latin American establishment. The U.S. objective, in the words of President John F. Kennedy's Secretary of Defense, Robert McNamara, was "to guard against external covert intrusion and internal subversion designed to create dissidence and insurrection."¹⁸ This required modernization of the traditional guardianship role.

The transformation of the enemy from external to internal meshed easily with the Latin American military tradition of intervening at times of crisis to protect the homeland. In a region notable for its lack of foreign wars, and hence of conventional combat experience, the Latin American militaries enthusiastically embraced the new assignment that promised hands-on experience in a different but equally patriotic kind of warfare. As an Argentine colonel put it, the new doctrine was "a hope for the Argentine army. It was destined to fill the void produced by the almost complete disappearance of

possibilities of war between our country and some of its neighbors."¹⁹ From the 1960s through the 1980s, safeguarding the national interest became synonymous with stamping out leftist subversives intent on replicating the Cuban Revolution.

The United States provided the Latin American militaries with extensive training in the means of combating the internal threat. By 1975, over seventy thousand soldiers had been trained at over one hundred service schools in the United States, in the Panama Canal Zone, and in their own countries. The United States, just learning about counterinsurgency in Vietnam, trained Latin Americans to fight guerrilla outbreaks using the guerrillas' own tactics, but aided by sophisticated weaponry and supporting equipment. Special elite units, based on the U.S. Army's Green Beret model, were formed in many countries; their efficacy was demonstrated in the defeat of Che Guevara's guerrillas in Bolivia in 1967—and their brutality in the massacres in El Salvador and Guatemala in the 1980s. In a parallel approach to internal security, the U.S. Agency for International Development provided training for police in riot control, intelligence, and interrogation techniques, which critics called torture.²⁰

The thousands of Latin American officers who received counterinsurgency and police training also took courses in national security doctrine. These classes taught about the communist threat and the methods of subversion that Marxists employed. The early success of the instruction in national security doctrine was reflected in a 1962 Argentine army report: "The armies of the free countries of America have taken part in studies of this nature in the Inter-American Course on Counter-Revolutionary Warfare. . . . These joint studies . . . bring out clearly that the principal enemy of our civilization and way of life is to be found in the very heart of our national communities."²¹ Another measure of success was the reputation of the U.S. Army's Southern Command's School of the Americas in the Panama Canal Zone, which trained over twenty thousand officers in the 1960s; so many of its graduates applied their lessons after returning home that it became known as the "school of assassins."²²

In some of the countries that would fall under military domination in the aftermath of the Cuban Revolution, particularly in South America, the military's analysis of the threat to national security involved both political and economic issues. On the political front, the threat was leftist subversion. National security required the control or elimination of subversives. In some cases, the military would push for civic reeducation of the populace to root out all ideas of Marxism, class conflict, and even the concepts of liberal democracy that permitted Marxism to compete freely with other ideologies in

the political system. On the economic side, a thorough reorientation of the economy would be needed to promote rapid economic development so as to eliminate the poverty upon which revolutionaries preyed. Unlike earlier crises that had prompted military intervention, the profound crisis provoked by the Cuban Revolution would not be susceptible to a quick fix. The patriotic mission of the armed forces would be accomplished only when the country had been thoroughly immunized against revolution.²³

While the economic program was normally left in the hands of civilian technocrats, and reeducation was the domain of intellectuals and bureaucrats, the immediate mission of the officer corps was to fight the new enemy of the patria: Marxist subversion. Marxist operatives not only engaged in guerrilla warfare; they were found throughout society, in political parties, universities, secondary schools, labor unions, the mass media, the social activist wing of the Catholic Church, the professions, and even in the home. As depicted during the McCarthy era in the United States, Marxists were not only disloyal to their country; they were duplicitous, clever, amoral, and capable of subverting organizations and using them for their devious purposes. The Argentine military report cited above confirmed this view: "The enemy is tremendously dangerous. We are not attacked from outside . . . but subtly undermined through all channels of the social organization. It poisons the minds, it weakens the spirit, it fabricates Pharisees and false prophets, and distorts everything in an imperceptible process of time."²⁴ Similarly, Chilean dictator Augusto Pinochet called Marxism "permanent aggression at the service of Soviet imperialism [which] gives rise to an unconventional war in which territorial invasion is replaced by attempts to take over states from within." To parry this threat, he concluded, "it is necessary to place power in the armed forces, since only they have the organization and means to counter it."²⁵

In several countries, the armed forces felt it necessary to modify, suspend, or even destroy the institutions of democracy that made it possible for revolutionary ideas to circulate and for subversive groups to operate. Imposing states of siege or emergency, they suspended habeas corpus, censored the media, purged judiciaries and legislatures, and banned political parties and unions. Where the perceived threat was grave, the military would go further. It would go to war against subversion using its ultimate weapon: state terrorism.

In its 1991 report, the Chilean truth commission, established after the restoration of civilian government to investigate human rights violations during the Pinochet dictatorship, cogently spelled out the connections between national security doctrine, counterinsurgency, and the extreme repression that the military applied in that country. The explanation is equally applicable to Argentina and other Latin American countries. Counterinsurgency

forces must fight guerrillas and subversives with their own unorthodox methods in order to keep the country from succumbing to forces directed from Cuba and the Soviet Union. Counterinsurgency training thus teaches secrecy, special methods of combat, and sophisticated interrogation techniques (torture). These and related exercises "gradually accustom the students [of counterinsurgency] to the fact that ethical limits were receding and diminishing, sometimes to the vanishing point." Conventional warfare was subject to the "rules of war"; war on subversives knew no rules at all. Because of the life-or-death importance of defending the homeland's Western Christian civilization against communist subversion, national security became "a supreme value . . . regarded as being above ethics. . . . In extreme cases (designated as such by the authorities) the rights of individuals could be violated by reason of an alleged general interest."²⁶ This reasoning legitimized repression without restraint. Moreover, it did not require a majority of ranking officers to force this logic on the entire military institution; a determined minority could sometimes impose its extremist agenda, its task facilitated by the fact that the more moderate majority had undergone the same training and indoctrination.

On August 3, 1976, Undersecretary of State for Latin American Affairs Harry W. Shlaudeman delivered a secret report to Secretary of State Henry Kissinger entitled "The 'Third World War' and South America." The report sheds further light on the driving forces behind state terrorism: "The military regimes of the southern cone of South America see themselves as embattled: on one side by international Marxism and its terrorist exponents, and on the other by the hostility of the incomprehending industrial democracies misled by Marxist propaganda." They are cooperating to "eradicate 'subversion,' a word which increasingly translates into non-violent dissent from the left and center-left. . . . This siege mentality shading into paranoia is perhaps the natural result of the convulsions of recent years in which the societies of Chile, Uruguay and Argentina have been badly shaken by assault from the extreme left. But the military leaders, despite near decimation of the Marxist left in Chile and Uruguay, along with the accelerating progress toward that goal in Argentina, insist that the threat remains and the war must go on. Some talk of the 'Third World War,' with the countries of the southern cone as the last bastion of Christian civilization."²⁷

The Terrorist States

The rise of revolutionary movements throughout Latin America in the wake of the Cuban Revolution had a destabilizing effect on the region's predominantly elected, civilian governments. The growth of demands for reform, the

creation or expansion of revolutionary groups, the rise in demonstrations and strikes, the *campesino* occupations of hacienda lands, and in several countries the appearance of guerrilla bands compromised governments' ability to maintain order and preserve citizens' security. Weakened by the growth of mobilization and by increasing challenges to the status quo, several Latin American governments fell to military coups between 1959 and 1963.²⁸

The March 1964 coup in Brazil was an important milestone along the way to Latin America's human rights crisis. Baset in the early 1960s by worker unrest and a massive peasant mobilization, both supported by populist President João Goulart, Brazil became increasingly unstable. The military's coup aimed not only to remove Goulart but to curb the left's influence in the political system. During the following five years, the military ruled within the framework of civilian institutions, reserving the presidency for military officers and curtailing the left parties and unions, but maintaining a congress and state governments with restricted powers. However, in response to the outbreak of urban guerrilla war in 1969, the military shut down the remaining civilian institutions and began a period of rule through severe repression. In addition to attacking the guerrillas, the government adopted the strategy—later refined in Chile and Argentina—of targeting their actual and potential supporters in order to isolate the guerrillas. Arbitrary detention, torture, and assassination became standard instruments of government policy in the fight against subversion; in addition to its own police and military units, the government sanctioned or condoned private death squads.

Because the guerrillas were easily defeated, the Brazilian military government did not employ its repressive powers to the full extent possible; in contrast to their Chilean and Argentine counterparts, the Brazilian officers attempted to weaken and marginalize the left, not eradicate it. By 1974, the military began to rein in its repressive apparatus. Yet the Brazilian armed forces had created the first Latin American national security state and had institutionalized state terrorism.²⁹

State terrorism in Uruguay began only six months after the military and police had delivered the coup de grace to the Tupamaros, the original Latin American urban guerrilla movement. Responding to a deteriorating economy and an increasingly unresponsive political system, the Tupamaros formed in the early 1960s and began operations against the government in 1968. At the height of their power, between 1969 and 1972, they had hundreds of fighters, an extensive support network, and a "people's prison" for high-profile detainees. The Tupamaro threat was so serious that the government in April 1972 declared an "internal state of war"; within months, the military had broken the organization and had captured its leaders.³⁰

After the defeat of the gravest insurrectionary challenge since Castro's victory in Cuba, the Uruguayan officers, following the prescriptions of national security doctrine, turned to rooting out the subversives who might share the Tupamaros' goals. They began with a "soft" coup in February 1973, and four months later, acting through a civilian figurehead president, they dissolved Congress, replaced it with an advisory council of state, and brought the public administration under military control. Thereafter, the military followed the Brazilian pattern by progressively stripping the hybrid civilian-military government of all substantive citizen participation and creating an apparatus of state terrorism to use against the left. As in Brazil, state terrorism exacted a heavy toll in imprisonment, exile, and torture. Yet in terms of deaths and disappearances, the records of the Brazilian and Uruguayan military dictatorships were mild in comparison with those of the Chilean and Argentine regimes.³¹

Chile became the third Latin American country to institutionalize state terrorism. Unlike their counterparts in Brazil and Uruguay, the Chilean military did not temporize. They were not interested in preserving even a facade of civilian governance, and upon overthrowing the elected government of Salvador Allende on September 11, 1973, they quickly abolished or appropriated virtually every institution that had the potential to oppose them. Unlike their Brazilian counterparts, they did not embrace state terrorism as a last recourse; they launched a wave of terrorism on the day of the coup. In contrast to the Brazilians and Uruguayans, the Chileans were very public about their objectives and their methods; there was nothing subtle about rounding up thousands of prisoners, the extensive use of torture, executions following sham courts-martial, and shootings in cold blood. After the initial wave of open terrorism, the Chilean armed forces constructed a sophisticated apparatus for the secret application of state terrorism that lasted until the dictatorship's end.³²

The impact of the Chilean coup reached far beyond the country's borders. Through their aid in the overthrow of Allende and their support of the Pinochet dictatorship, President Richard Nixon and his national security adviser, Henry Kissinger, sent a clear signal to all of Latin America that anti-revolutionary regimes employing repression, even state terrorism, could count on the support of the United States. The U.S. government, in effect, gave a green light to Latin America's right wing and its armed forces to eradicate the left and use repression to erase the advances that workers—and in some countries, *campesinos*—had made through decades of struggle. This "September 11 effect" was soon felt around the hemisphere.³³

Thirty months after the Chilean coup, the Argentine military struck. Facing a guerrilla war that they were handily winning, the armed forces overthrew President Isabel Perón and immediately escalated a "dirty war" that

was already under way against the left, both guerrillas and noncombatants. The Argentines learned from the Chilean experience; desiring to avoid the near-universal condemnation that had greeted the bloodbath across the Andes, they devised a manner of eliminating the left without overflowing the prisons, holding mock trials, or leaving bodies to be collected and identified. They perfected the forced disappearance of persons—a method of killing that left no trace of the victims.³⁴ After the Argentine coup, over two-thirds of the population of South America lived under repressive dictatorships as the tide of reaction swept over the region.

Institutionalized terrorism arrived in Peru early in the 1980s when the ruthless insurgency of the Sendero Luminoso, a rural-based guerrilla organization inspired by Mao Zedong and by indigenous sentiments, used terrorism against Andean villagers in its effort to seize power. During a decade of counterinsurgency, the Peruvian government responded with terrorism, effectively trapping civilians between two repressive forces. A Peruvian truth commission reported in 2003 that some seventy thousand people were killed in the struggle, half by the insurgents and a third by the government forces.³⁵

In the late 1970s and the 1980s, the human rights crisis reached Central America. After an eighteen-year struggle, in the only successful guerrilla war since Castro's, the Frente Sandinista de Liberación Nacional (Sandinista National Liberation Front, FSLN) toppled the venerable Somoza family dictatorship in 1979. The Sandinista victory and subsequent implementation of its revolutionary program galvanized the left in neighboring countries and in response triggered the use of state terrorism in defense of elite privileges and national security.³⁶

While Honduras experienced heightened repression in the aftermath of the Sandinista victory and collaborated in the U.S.-sponsored Contra War against the Nicaraguan government, El Salvador and Guatemala were the most severely affected by state terrorism. In El Salvador, a coalition government of the country's economic elite and the military, which ruled through electoral fraud and repression, had been challenged by a small guerrilla movement in the 1970s. Energized by the Sandinista victory and support from Cuba, the fragmented insurgency united in 1980 as the Frente Farabundo Martí de Liberación Nacional (Farabundo Martí National Liberation Front, FMLN) after government operatives assassinated Archbishop Oscar Arnulfo Romero, a vocal critic of government-sponsored death squads and human rights violations. With the 1981 inauguration of the Reagan administration, the U.S. government, labeling the FMLN as communist subversives directed by a Moscow-Havana-Managua axis, deepened its involvement in the conflict. U.S.-financed and trained counterinsurgency battalions

and paramilitary death squads turned their weapons against civilians as well as guerrillas, repressing prodemocracy organizations, driving peasants off the countryside, and massacring entire villages. By the mid-1980s, the civil war had reached equilibrium, with the government holding the main cities and keeping the highways open by day and the FMLN operating freely by night.³⁷

A conjuncture of events in 1989 and 1991 brought the war to a close as both sides lost international support. A government death squad's highly publicized 1989 brutal murder of six Jesuit priests, their housekeeper, and her daughter swayed U.S. public opinion against continuing support of the government, while the Sandinistas' electoral loss in 1990, combined with the 1991 collapse of the Soviet Union and the resulting economic crisis in Cuba, undercut moral and financial support for the FMLN. Brokered by the UN, a January 1992 peace accord ended the armed conflict after at least seventy-five thousand people, mostly civilians, had been killed. The war also created hundreds of thousands of refugees and launched the migration stream that made Salvadorans the fastest-growing Latino group in the United States in the late twentieth century.³⁸

In neighboring Guatemala, the escalation of repression in the late 1970s and 1980s had its roots in a long-smoldering guerrilla conflict. After the U.S.-sponsored invasion that overthrew the progressive Arbenz government in 1954 and the rollback of reforms enacted in the previous decade, many Guatemalan leftists, including workers and peasants, were receptive to Fidel Castro's call to revolution. From 1960 to 1970, guerrillas operated with minimal success, and the government used troops and paramilitary death squads against them and all potential collaborators, including peasants, left and moderate politicians, students, and union leaders. In the wake of the Sandinista victory, guerrilla activity grew, and the government responded with unprecedented state terrorism.³⁹

Heading civilian governments, two generals, Romeo Lucas García (1978–1982) and José Efraín Ríos Montt (1982–1983) unleashed a policy of village massacres and scorched earth that drove Maya peasants out of entire regions, into Mexican refugee camps, and in many cases on to the United States. While all elements of the left were targeted, the brutality directed toward the Maya and the number of victims from their ranks validated the application of the term "genocide" to the repression of this period. The one-sided conflict dragged on until 1996, when the UN finally succeeded in arranging a peace accord. Over two hundred thousand people, primarily Mayan peasants, had been killed, and hundreds of thousands were displaced.⁴⁰ The toll of Latin America's human rights crisis was massive. The guerrillas were responsible for numerous and heinous human rights violations; but

governments, using their overwhelmingly superior power, and aided by the United States, were responsible for the great majority of the crimes. Over four hundred thousand people were killed, many of them disappeared, in the name of national security—the great majority of them innocent civilians caught up in the conflagration. The number of persons arbitrarily imprisoned, tortured, and exiled, while impossible to ascertain, clearly reached several million. The dreams shattered, careers truncated, families sundered, and lives ruined by state terrorism cannot possibly be quantified.

Owing to the worldwide publicity it received and the reaction against it, the Latin American human rights crisis contributed to the strengthening of the international human rights regime. It was an important stimulus to the exponential growth of human rights activism, both national and international, that began in the mid-1970s. Repression in Latin America, as well as elsewhere in the world, led to the founding of additional human rights organizations, both intergovernmental and NGOs, and to the adoption of new treaties and conventions. Latin America, in sum, played a major role in the development of tougher human rights standards and the tools necessary to enforce those standards.⁴¹

The Legacies of State Terrorism

By 1990, Latin America's human rights crisis was winding down. The military dictatorships that had institutionalized state terrorism in South America were replaced by civilian governments: Argentina's in 1983, Uruguay's in 1984, Brazil's in 1985, and Chile's in 1990. Ecuador had returned to elected government in 1979, Bolivia in 1982, and in Paraguay, the Stroessner dictatorship ended after thirty-five years in 1989. In Peru, the Sendero Luminoso was essentially defeated by 1992, and repression eased. With the end of war in El Salvador in 1992 and Guatemala in 1996, the era of state terrorism was largely over. In the new millennium, the human rights situation in Cuba remains essentially the same as it has been for nearly half a century. In Haiti, an established tradition of human rights violations has continued. Colombia, in the throes of an intensified guerrilla war and drug-driven violence, is the only country whose human rights situation has worsened since 1990.⁴²

The transition from rule by repression—whether under military or civilian regimes—to governments democratically elected and committed to the rule of law was profoundly challenging. Most importantly, the weakness of democratic culture in most of Latin America was an obstacle to the construction or reestablishment of civic institutions and stable civilian governments. In addition, the creation of democratic rule was negatively impacted

by the global economic contraction of the 1980s and was further threatened by the neoliberal policies imposed by the International Monetary Fund and the World Bank that fostered growing economic disparities and further impoverished the poor. A quarter of all Latin Americans in 1993 lived on a dollar per day or less, a number that had increased by 20 percent since 1987. In those countries moving from regimes of state terrorism to democracy, the challenges were compounded by the legacies of grave human rights violations.⁴³

Upon relinquishing political power, the armed forces left behind profoundly divided societies. Deep fissures separated the armed forces and the groups that had supported their rule from the individuals and groups who had suffered the wrath of state terrorism and who were backed by human rights movements that had been formed during the period of repression. The central issue dividing societies was justice versus impunity. Would the amnesty laws left in place by exiting military regimes hold up? Would the victims, their families, and the human rights movements settle for an accounting of what had occurred in their countries? For admissions of culpability or requests for forgiveness? For the remains of the disappeared? Or would they demand investigations and trials for the alleged perpetrators of human rights violations? Would the armed forces submit to investigations and prosecution after, in their view, saving their countries from Marxism? Would the new civilian governments, fearing military reprisals, choose to sacrifice justice and close a terrible chapter in their national histories in the interest of shoring up their fragile democracies?⁴⁴

In practice, in societies undergoing the transition from repressive to democratic governments, justice is neither absolute nor unidimensional. There are both judicial and nonjudicial responses to human rights crimes and various ways of promoting reconciliation. In this complex process, called transitional justice, governments are rarely capable of, and often are not interested in, bringing repressors to trial. Even where there is the will, there are complicating factors such as whether to prosecute the actual killers and torturers or only those whose orders they obeyed, and whether to adopt a statute of limitations on trials so as to avoid prolonging the tensions and divisiveness they create.

There are several nonjudicial approaches that can help to heal societies following severe repression. These include establishing investigative bodies, normally called truth commissions, to ascertain the facts about the repression and identify the victims; in addition to aiding individuals and societies in the healing process, truth commissions provide the basis of memory and truth that human rights advocates use to contest the official histories implanted

and left behind by the repressor regimes. Other nonjudicial approaches include offering material reparations to victims and their families; reforming institutions that violated human rights or were complicit in the violations, such as military and police forces and courts; and building a new culture of respect for human rights.⁴⁵

Just as the period of massive, institutionalized human rights violations was shaped by the constellation of domestic and international political forces, so was the period of transition during which the legacies of state terror were addressed. The most important single factor shaping the human rights climate was the establishment or reestablishment of democratic political systems. The period from 1990 to the present is unprecedented in Latin American history: With the exceptions of Cuba and Haiti, democratic governments, defined as those chosen by "free, open, and fair elections," held uninterrupted sway throughout the region.⁴⁶ The new culture of democracy is in large measure a reaction against the excesses of the period of state terror. The hemispheric commitment to democracy was formalized in the 2001 Inter-American Democratic Charter, which requires all OAS members to maintain democratic, constitutional governments. While fragile, the new democracies have survived several tests: when presidents have resigned or been driven from office, as occurred seven times in Ecuador between 1997 and 2005, four times in Argentina, three times in Bolivia, and once in Peru and Paraguay, the armed forces respected the constitutional order of succession and refrained from seizing power.⁴⁷

Human rights observance is imperfect in any democratic country, but with the freedoms and the balance of powers implicit in democratic governance, civil and political rights have a much better chance of being recognized and practiced than in authoritarian systems. Moreover, democracy allows the human rights organizations formed during the period of repression to function freely. While they seek justice for past violations, they also vigorously push for strict observance of human rights in the present.

The international political situation is likewise very different from the 1970s and 1980s. With the collapse of the Soviet Union in 1991, the threat of the spread of Cuban-style revolution evaporated—and with it the rationale for a U.S. policy of supporting state terrorist regimes. Since then, except for dealing with perceived threats or problems such as the war in Colombia, the Chávez government in Venezuela, and the perennial aggravation of Fidel Castro, the United States has paid little attention to its southern neighbors beyond pushing its neoliberal economic agenda. As a signatory to the Inter-American Democratic Charter, the U.S. government is formally committed to supporting democracy in Latin America.⁴⁸

Another major difference from the earlier period that affects the observance of human rights is the nature of the international human rights regime. When Latin America entered its human rights crisis, international institutions were still in the stage of standard setting, monitoring agencies were relatively new and untested, and domestic institutions were essentially nonexistent. But in response to the repression and state terrorism, numerous human rights organizations were established, and powerful human rights movements developed in some Latin American countries. International human rights NGOs multiplied. In addition, during its rapid evolution in the 1990s, human rights jurisprudence essentially ruled out amnesties in any form for human rights crimes, and international enforcement mechanisms were established. International jurisprudence has helped domestic human rights organizations establish higher standards and compel compliance with human rights law in Latin American countries. The 1998 arrest of General Pinochet in London, despite the eventual refusal of Great Britain to allow his extradition to Spain, graphically showed the world that a new era in human rights had arrived.⁴⁹

While the political conjuncture of the postrepression period clearly tilted in favor of improved human rights practices, it did not guarantee redress for the massive human rights violations of the recent past. Indeed, victims and their families were often victimized again after the repressive regimes ended. The winners in the war on subversion reminded the losers of their feats and merits through holidays, ceremonies, speeches, and publications. When victims were commemorated, former repressors often countered by glorifying their own past deeds in saving the patria. Encounters with former torturers and the murderers of family members, who enjoyed their freedom and flouted their impunity, were acid reminders of state terrorism. Reports of truth commissions and unscripted events such as repressors' public confessions or Pinochet's arrest triggered memory and reopened wounds suffered years earlier. There was also the limited scope of investigations, reparations, and justice. Most civilian governments, if they did anything, limited their efforts to the most egregious crimes: murder and disappearance. This approach, dictated by the need to limit provocations to the military, implicitly suggested that indiscriminate detention, torture, rape, and forced exile were unimportant.

The greatest obstacle to justice was the continuing power of the militaries. Although out of office, the militaries continued to exercise their traditional influence over national politics, either directly as in Chile, or indirectly through pressures and sometimes threats, even rebellions. Antidemocratic military culture appeared to have hardened during the militaries' antisubversive campaigns. Many officers felt that their mission of national purification

committed to seeking justice for human rights violations were forced to compromise in the political arena; they also had to compromise with the militaries, which implicitly or explicitly threatened to disrupt the delicate process of democratic consolidation if subjected to investigation or prosecution.

The difficulty of achieving justice within democracy was poignantly illustrated by developments in Uruguay following the end of its period of repression in 1984. In the only case of its kind, the Uruguayan electorate passed direct judgment on the question of justice versus impunity. After the national congress, threatened by the military and its supporters, enacted a 1986 law forbidding prosecutions for human rights crimes, citizens gathered sufficient signatures to subject the law to a referendum. After much delay, in the April 1989 poll, they lost: military pressures, support for the past repression, public indifference, pluralistic politics, and the continuing state of fear instilled by state terrorism prevailed over the sentiment for justice by 53 to 41 percent.⁵³

The contest between justice and impunity continues today in all countries that experienced state terrorism during Latin America's human rights crisis. This is particularly true in Chile and Argentina, where Latin America's most powerful human rights movements actively push investigations and trials of alleged repressors. Supported by the rapidly evolving international jurisprudence of human rights, even in Uruguay the issue supposedly settled by popular vote has been resurrected. "True reconciliation," in the words of Nelson Mandela, "does not consist in merely forgetting the past."⁵⁴ Despite efforts to impose collective amnesia, the past is very much alive today; and thanks to the persistence of human rights movements and victims of past dictatorships and their families, and to the human rights revolution launched by the Nuremberg trials, it is likely to be remembered for a very long time.

Notes

1. John Eagleson and Philip Scharper, eds., *Puebla and Beyond: Documentation and Commentary*, trans. John Drury (Maryknoll, NY: Orbis Books, 1979), 200.
2. "Report to Foreign Military Attachés by Argentine Armed Forces Leaders after Frondizi Overthrow," confidential U.S. Foreign Service Dispatch, April 16, 1962, quoted in Martin Edwin Andersen, *Dossier Secreto: Argentina's Desaparecidos and the Myth of the "Dirty War"* (Boulder, CO: Westview Press, 1993), 44.
3. John D. Martz, ed., *United States Policy in Latin America: A Quarter Century of Crisis and Challenge, 1961-1986* (Lincoln: University of Nebraska Press, 1988); Peter H. Smith, *Talons of the Eagle: Dynamics of U.S.-Latin American Relations*, 2nd ed. (New York: Oxford University Press, 2000), 117-218.
4. Timothy P. Wickham-Crowley, *Guerrillas and Revolution in Latin America: A Comparative Study of Insurgents and Regimes since 1956* (Princeton, NJ: Princeton

was unfinished and resented suggestions that they had committed excesses in the holy crusade to save the patria from Marxism.⁵⁰ For these officers and their civilian allies, the victims, whether evil or merely misguided, were responsible for their fate. Thus the militaries and their allies raised obstacles to investigations and prosecutions and harassed human rights groups; in Guatemala, unknown assailants—presumably linked to the military—went so far as to murder Bishop Juan Gerardi, head of the Catholic Church's Recovery of Historical Memory project. This happened in April 1998, two days after the church released the report of its truth commission's findings.⁵¹

Public indifference was another impediment to the quest for justice in the transitional period. Despite the large numbers of victims of human rights violations, a majority of the citizens of the countries that experienced state terrorism had not lost family members or close friends; most had not undergone arbitrary arrest and torture. Many of the same persons who had hidden behind a feigned ignorance of the human rights violations occurring around them during the period of repression continued to be disengaged, perhaps shamed by the reminders of their earlier denial of reality. Others, particularly the rural and small-town poor, were neutralized by the lingering memories of state terrorism and the enduring fear it instills; even if they lost family and friends, they often grieved in silence rather than making dangerous waves. These large segments of the countries' populations were marginal to the human rights movements' quest for justice. With the passage of time and the onset of "issue fatigue," they could even turn against the human rights movements, whose demands, shrill voices, and street demonstrations were unwelcome reminders of times best forgotten and impediments to the easy solution of closing the book on a difficult period and getting on with individual lives and national priorities.⁵²

The complexities of pluralistic politics also contributed to the difficulty of achieving justice. In addition to the indifference of large segments of the population, advocates of justice had to deal with the substantial numbers of citizens who had supported the repression out of the conviction that the perceived threats to their way of life posed by Cuban-inspired leftists fully justified a war on subversion. Even the political parties sympathetic to victims and intent on achieving justice had multiple agendas, justice being one among many, whereas victims and their families tended to be single-issue political actors. Lacking the common enemy that had united them during the period of repression, the human rights movements themselves sometimes split over goals and strategy, thereby losing their cohesiveness and diluting their voices. They also lost much of their international financial support following the end of institutionalized repression. Those governments that were most

- University Press, 1992); Thomas C. Wright, *Latin America in the Era of the Cuban Revolution*, rev. ed. (Westport, CT: Praeger, 2001); Boris Goldenberg, *The Cuban Revolution and Latin America* (New York: Praeger, 1966).
5. Herbert Matthews, *The Cuban Story* (New York: George Braziller, 1961), 273-74.
 6. Donald C. Hodges, *The Latin American Revolution: Politics and Strategy from Apro-Marxism to Guevarism* (New York: William Morrow, 1974).
 7. Che Guevara, *Guerrilla Warfare*, 3rd ed., rev. and updated by Brian Loveman and Thomas M. Davies Jr. (Wilmington, DE: Scholarly Resources, 1997); Rolando Bonachea and Marta San Martín, *The Cuban Insurrection, 1952-1958* (New Brunswick, NJ: Transaction Books, 1974); Rolando Bonachea and Nelson P. Valdés, eds., *Revolutionary Struggle 1947-1958: Volume I of the Selected Works of Fidel Castro* (Cambridge, MA: MIT Press, 1972); Che Guevara, *Reminiscences of the Cuban Revolutionary War*, trans. Victoria Ortiz (New York: Grove Press, 1968); Jorge G. Castañeda, *Compañero: The Life and Death of Che Guevara*, trans. Marina Castañeda (New York: Knopf, 1997); Jon Lee Anderson, *Che Guevara: A Revolutionary Life* (New York: Grove Press, 1997).
 8. Rolando E. Bonachea and Nelson P. Valdés, eds., *Cuba in Revolution* (Garden City, NY: Anchor Books, 1972); Edward Boorstein, *The Economic Transformation of Cuba* (New York: Monthly Review Press, 1968); Jorge I. Domínguez, *Cuba: Order and Revolution* (Cambridge, MA: Harvard University Press, 1978).
 9. Philip W. Bonsal, *Cuba, Castro, and the United States* (Pittsburgh: University of Pittsburgh Press, 1972); Jorge I. Domínguez, *To Make the World Safe for Revolution: Cuba's Foreign Policy* (Cambridge, MA: Harvard University Press, 1989); Richard E. Welch Jr., *Response to Revolution: The United States and the Cuban Revolution, 1959-1961* (Chapel Hill: University of North Carolina Press, 1985); Peter Wyden, *Bay of Pigs* (New York: Simon & Schuster, 1979).
 10. Martin Kenner and James Petras, eds., *Fidel Castro Speaks* (New York: Grove Press, 1969); and Tad Szulc, *Fidel: A Critical Portrait* (New York: William Morrow, 1986).
 11. The original 1976 constitution is found at www.georgetown.edu/pdba/Constitutions/Cuba/cuba1976.html (accessed June 6, 2005).
 12. Amnesty International, Cuba, "Essential Measures": *Human Rights Crackdown in the Name of Security* (London: Amnesty International, 2003).
 13. Harry Kantor, *The Ideology and Politics of the Peruvian Aprista Movement* (New York: Octagon Books, 1966); John D. Martz, *Acción Democrática: Evolution of a Modern Political Party in Venezuela* (Princeton, NJ: Princeton University Press, 1966); Michael Fleet, *The Rise and Fall of Chilean Christian Democracy* (Princeton, NJ: Princeton University Press, 1985).
 14. Brian Loveman and Thomas M. Davies Jr., *The Politics of Antipolitics: The Military in Latin America*, rev. and updated ed. (Wilmington, DE: Scholarly Resources, 1997); Frederick M. Nunn, *The Time of the Generals: Latin American Professional Militarism in World Perspective* (Lincoln: University of Nebraska Press, 1992); Bruce W. Farcau, *The Chaco War: Bolivia and Paraguay, 1932-1935* (Westport, CT: Praeger, 1996).
 15. Brian Loveman, "Human Rights, Antipolitics, and Protecting the Patria: An (Almost) Military Perspective," in *The Politics of Antipolitics*, ed. Loveman and Davies, 402.
 16. Roger Trinquier, *Guerre, subversion, révolution* (Paris: R. Laffont, 1968); Genaro Arriagada Herrera, *El pensamiento político de los militares: estudios sobre Chile, Argentina, Brasil y Uruguay* (Santiago: Centro de Investigaciones Socioeconómicas de la Compañía de Jesús en Chile, 1981), 169-207; Instituto de Estudios Políticos para América Latina y África, *La ideología de la seguridad nacional en América Latina* (Madrid: Instituto de Estudios Políticos para América Latina y África, 1977); Manuel Antonio Garretón, *The Chilean Political Process*, trans. Sharon Kellum with Gilbert W. Merks (Boston: Unwin Hyman, 1989), 68-84; David Pion-Berlin, "National Security Doctrine, Military Threat Perception and the 'Dirty War,'" *Comparative Political Studies* 21 (October 1988): 382-407.
 17. Quoted in Graham H. Stewart and James L. Tigner, *Latin America and the United States*, 6th ed. (Englewood Cliffs, NJ: Prentice-Hall, 1975), 804-5; John Child, *Unequal Alliance: The Inter-American Military System, 1938-1978* (Boulder, CO: Westview Press, 1980); Richard M. Immerman, *The CIA in Guatemala: The Foreign Policy of Intervention* (Austin: University of Texas Press, 1982); Stephan Schlesinger and Stephen Kinzer, *Bitter Fruit: The Untold Story of the American Coup in Guatemala* (Garden City, NJ: Doubleday & Co., 1982).
 18. Quoted in Guevara, *Guerrilla Warfare*, 26; Cole Blasier, *The Hovering Giant: U.S. Responses to Revolutionary Change in Latin America, 1910-1985*, rev. ed. (Pittsburgh: University of Pittsburgh Press, 1985).
 19. Mario Horacio Orsolini, *La crisis del ejército* (Buenos Aires: Ediciones Arayú, 1964), 45. Writing also about Argentina, Eduardo Tiscornia noted that, in the absence of wartime combat between the Paraguayan War (1865-1870) and the Falklands/Malvinas conflict (1982), "it became necessary to create artificial conditions to preserve the martial spirit and construct the internal corporative pride that real wartime actions provide." Eduardo Tiscornia, *El destino circular de la Argentina, 1810-1984* (Buenos Aires: Librería Sarmiento, 1983), 142.
 20. Lesley Gill, *The School of the Americas: Military Training and Political Violence in the Americas* (Durham, NC: Duke University Press, 2004); Child, *Unequal Alliance*; Michael T. Klare, *War without End: American Planning for the Next Vietnamese* (New York: Vintage Books, 1972); Loveman and Davies, eds., *The Politics of Antipolitics*, 130-31.
 21. "Report to Foreign Military Attachés by Argentine Armed Forces Leaders after Frondizi Overthrow," confidential U.S. Foreign Service Dispatch, April 16, 1962, quoted in Andersen, *Dossier Secreto*, 44.
 22. Jack Nelson-Pallmeyer, *School of Assassins: Guns, Greed, and Globalization* (Maryknoll, NY: Orbis Books, 2001); Michael T. Klare and Cynthia Armon, *Supplying Repression: U.S. Support for Authoritarian Regimes Abroad* (Washington, DC: Institute for Policy Studies, 1981).

23. David Collier, ed., *The New Authoritarianism in Latin America* (Princeton, NJ: Princeton University Press, 1979); Abraham F. Lowenthal and J. Samuel Fitch, eds., *Armies and Politics in Latin America*, rev. ed. (New York: Holmes & Meier, 1986); Joseph Ramos, *Neoliberal Economics in the Southern Cone of Latin America, 1973-1983* (Baltimore, MD: Johns Hopkins University Press, 1986); Karen Remmer, *Military Rule in Latin America* (Boston: Unwin Hyman, 1989); Alain Rouquié, *The Military and the State in Latin America*, trans. Paul Sigmund (Berkeley: University of California Press, 1987).
24. Quoted in Andersen, *Dossier Secreto*, 44.
25. From a 1976 speech, quoted in Genaro Arragada Herrera, *Por la razón o la fuerza: Chile bajo Pinochet* (Santiago: Editorial Sudamericana, 1998), 63.
26. Chile, *Report of the National Commission on Truth and Reconciliation*, trans. Phillip E. Berryman (Notre Dame, IN: University of Notre Dame, 1993), 1:61. A scholar of the Argentine dirty war wrote: "Cold War crusaderism allied to extralegal tactics taught that morality could be suspended in the 'higher cause' of defending the nation, the West, or Christianity." Paul H. Lewis, *Guerrillas and Generals: The Dirty War in Argentina* (Westport, CT: Praeger, 2002), 143.
27. Peter Kornbluh, *The Pinochet File: A Declassified Dossier on Atrocity and Accountability* (New York: New Press, 2003), 187.
28. Goldenberg, *The Cuban Revolution*; Irving Louis Horowitz, Josué de Castro, and John Gerassi, eds., *Latin American Radicalism* (New York: Vintage Books, 1969); Henry A. Landsberger, ed., *Latin American Peasant Movements* (Ithaca, NY: Cornell University Press, 1969).
29. Wilfred A. Bacchus, *Mission in Mufti: Brazil's Military Regimes, 1964-1985* (Westport, CT: Greenwood Press, 1990); Peter McDonough, *Power and Ideology in Brazil* (Princeton, NJ: Princeton University Press, 1981); Maria Helena Moreira Alves, *State and Opposition in Military Brazil* (Austin: University of Texas Press, 1985); Thomas E. Skidmore, *The Politics of Military Rule in Brazil* (New York: Oxford University Press, 1988).
30. María Esther Gilio, *The Tupamaro Guerrillas*, trans. Anne Edmondson (New York: Ballantine Books, 1973); James Kohl and John Litt, eds., *Urban Guerrilla Warfare in Latin America* (Cambridge, MA: MIT Press, 1974); Arturo C. Porzecanski, *Uruguay's Tupamaros: The Urban Guerrilla* (New York: Praeger, 1973).
31. Servicio Paz y Justicia, Uruguay, *Uruguay Nunca Más: Human Rights Violations, 1972-1985*, trans. Elizabeth Hampsten (Philadelphia: Temple University Press, 1992); Saúl Sosnowski and Louise B. Popkin, eds., *Repression, Exile, and Democracy: Uruguayan Culture*, trans. Louise B. Popkin (Durham, NC: Duke University Press, 1993).
32. See chapter 3.
33. See chapter 3, 49, 56, 74-79, 82-83, on the U.S. role in Chile.
34. See chapter 4.
35. Cynthia McClintock, *Revolutionary Movements in Latin America: El Salvador's FMLN and Peru's Shining Path* (Washington, DC: United States Institute of Peace Press, 1998); David Scott Palmer, ed., *The Shining Path of Peru* (New York: St. Martin's Press, 1992); Steve J. Stern, ed., *Shining and Other Paths: War and Society in Peru, 1980-1995* (Durham, NC: Duke University Press, 1998). The truth commission's report is available on the Internet at www.cverdad.org.pe/ingles/final/conclusiones.php (accessed October 16, 2005).
36. John A. Booth, *The End and the Beginning: The Nicaraguan Revolution*, 2nd ed. (Boulder, CO: Westview Press, 1985); Thomas W. Walker, ed., *Nicaragua: The First Five Years* (New York: Praeger, 1985); Henri Weber, *Nicaragua: The Sandinista Revolution*, trans. Patrick Camiller (London: Verso Editions, 1981).
37. Americas Watch, *El Salvador's Decade of Terror: Human Rights since the Assassination of Archbishop Romero* (New Haven, CT: Yale University Press, 1991); Tommie Sue Montgomery, *Revolution in El Salvador: Origins and Evolution*, 2nd ed. (Boulder, CO: Westview Press, 1989); McClintock, *Revolutionary Movements*.
38. Tommie Sue Montgomery, *Revolution in El Salvador: From Civil Strife to Civil Peace*, 2nd ed. (Boulder, CO: Westview Press, 1995).
39. J. L. Fried et al., eds., *Guatemala in Rebellion: Unfinished Revolution* (New York: Grove Press, 1982); Eduardo Galeano, *Guatemala: Occupied Country*, trans. Cedric Belfrage (New York: Monthly Review Press, 1969).
40. Ricardo Falla, *Massacres in the Jungle: Ixcán, Guatemala, 1975-1982*, trans. Julia Howland (Boulder, CO: Westview Press, 1994); Daniel Wilkinson, *Silence on the Mountain: Stories of Terror, Betrayal, and Forgetting in Guatemala* (Boston: Houghton Mifflin, 2002); Susanne Jonas, *Of Centaurs and Doves: Guatemala's Peace Process* (Boulder, CO: Westview Press, 2000); Rachel Sieder, ed., *Guatemala after the Peace Accords* (London: Institute of Latin American Studies, 1998).
41. See chapters 3 and 4.
42. Wright, *Latin America in the Era, 194-202*; Amnesty International, *Cuba, "Essential Measures."* For up-to-date coverage of Colombia, see *Colombia Journal Online* at www.colombiajournal.org. Annual reports on human rights in Cuba and Haiti, as well as all other Latin American countries, are published by Human Rights Watch (<http://hrw.org>) and Amnesty International (www.amnesty.org).
43. The literature on transitions is voluminous. See Guillermo O'Donnell and Philippe Schmitter, *Transitions from Authoritarian Rule: Tentative Conclusions about Uncertain Democracies* (Baltimore, MD: Johns Hopkins University Press, 1986); Guillermo O'Donnell, Philippe Schmitter, and Laurence Whitehead, eds., *Transitions from Authoritarian Rule: Latin America* (Berkeley: University of California Press, 1988); James M. Malloy and Mitchell A. Seligson, eds., *Authoritarians and Democrats: Regime Transition in Latin America* (Pittsburgh: University of Pittsburgh Press, 1987). On Latin America's impoverishment, see Albert Berry, ed., *Poverty, Economic Reform, and Income Distribution in Latin America* (Boulder, CO: Lynne Rienner, 1998); Douglas A. Chalmers et al., eds., *The New Politics of Inequality in Latin America: Rethinking Participation and Representation* (New York: Oxford University Press, 1997); Michel Chossudovsky, *The Globalisation of Poverty: Impacts of IMF and World Bank Reforms* (London: Zed Books, 1997). Wright, *Latin America in the Era*, 203.

44. Luis Roniger and Mario Sznajder, *The Legacy of Human-Rights Violations in the Southern Cone: Argentina, Chile, and Uruguay* (Oxford: Oxford University Press, 1999), 109–35. Chilean writer Ariel Dorfman aptly sums up the challenges in the afterword to his play *Death and the Maiden* (New York: Penguin, 1992), 73–74.
45. Ruti Teitel, *Transitional Justice* (New York: Oxford University Press, 1999); A. James McAdams, ed., *Transitional Justice and the Rule of Law in New Democracies* (Notre Dame, IN: University of Notre Dame Press, 1997); Alexandra Barahona de Brito, Carmen González-Enríquez, and Paloma Aguilar, eds., *The Politics of Memory: Transitional Justice in Democratizing Societies* (Oxford: Oxford University Press, 2001); Mark R. Amstutz, *The Healing of Nations: The Promise and Limits of Political Forgiveness* (Lanham, MD: Rowman & Littlefield, 2005); Alexandra Barahona de Brito, *Human Rights and Democratization in Latin America: Uruguay and Chile* (Oxford: Oxford University Press, 1997), 1–32; Manuel Antonio Garretón, “Human Rights in Democratization Processes,” in *Constructing Democracy: Human Rights, Citizenship, and Society in Latin America*, ed. Elizabeth Jelin and Eric Hershberg (Boulder, CO: Westview Press, 1996), 39–58. *NACLA Report on the Americas* 32, no. 2 (September–October 1998), titled “Unearthing Memory: The Present Struggle over the Past,” is devoted to memory and truth contestation.
46. The definition of democratic elections is from Samuel P. Huntington, *The Third Wave: Democratization in the Late Twentieth Century* (Norman: University of Oklahoma Press, 1991), 9. Note that Mexico’s 1988 presidential election (for the 1988–1994 term) was fraudulent, but reforms made the process more transparent thereafter.
47. Roderick Ai Camp, ed., *Democracy in Latin America: Patterns and Cycles* (Wilmington, DE: Scholarly Resources, 1996); Jorge I. Domínguez, ed., *Constructing Democratic Governance: Latin America and the Caribbean in the 1990s* (Baltimore, MD: Johns Hopkins University Press, 1996); John Peeler, *Building Democracy in Latin America* (Boulder, CO: Lynne Rienner, 1998); Christopher Sabatini, “Plowing the Sea? International Defense of Democracy in the Age of Illiberal Democracy,” in *Democracy and Human Rights in Latin America*, ed. Richard S. Hillman, John A. Peeler, and Elsa Cardozo da Silva (Westport, CT: Praeger, 2002), 77–101. See the Inter-American Democratic Charter at www.oas.org/charter/docs/resolution1_en_p4.htm (accessed October 4, 2005).
48. Jonathan Hartlyn, Lars Schoultz, and Augusto Varas, eds., *The United States and Latin America in the 1990s: Beyond the Cold War* (Chapel Hill: University of North Carolina Press, 1992); Smith, *Talons of the Eagle*, 219–352; *NACLA Report on the Americas* 34, no. 3 (November–December 2000), an issue titled “Minding the Backyard: Washington’s Latin America Policy after the Cold War,” offers a critical assessment of U.S. policy.
49. See chapter 6, 202–7.
50. See chapter 5, 151–57, and chapter 6, 181–85, 194–96, 198.
51. *NACLA Report on the Americas* 32, no. 2 (September–October 1998): 33–34.

52. See chapters 5 and 6 for analyses of the political impediments to justice discussed in this and the following paragraph.

53. Robert K. Goldman and Cynthia G. Brown, *Challenging Impunity: The Ley de Caducidad and the Referendum Campaign in Uruguay* (New York: Americas Watch, 1989); Lawrence Weschler, *A Miracle, a Universe: Settling Accounts with Torturers* (New York: Pantheon Books, 1990), 173–236; Servicio Paz y Justicia, *Uruguay, Uruguay Nunca Más*, xxi–xxiv.

54. www.ethics.org.au/things_to_read/email_newsletter_04_04.shtml (accessed August 30, 2006).

CHAPTER THREE



Chile under State Terrorism

The annihilation of Marxism could not be achieved in a democratic climate; the annihilation of Marxism and of everyone who considered themselves pro-Marxist, neutral, lukewarm, undefined, was carried out with brutal methods of repression that had no limits.

—General Horacio Toro, Chilean Army¹

In the minds of the world at large, we are closely associated with this junta, ergo with fascists and torturers.

—Richard J. Bloomfield, U.S. Embassy staff, Santiago²

Prior to 1973, Chile was one of Latin America's most stable and democratic countries. In contrast to most countries of the region, Chile developed a strong tradition of civilian rule following its independence from Spain in 1818. Beginning in the 1920s, the elite-dominated political system had opened, with a brief period of political turbulence, to accommodate new parties and interest associations representing Chile's middle and working classes. By the late 1930s, the Chilean electorate had coalesced into three roughly equal right, centrist, and left blocs, the latter represented by the Socialist Party and Latin America's most powerful Communist Party. The middle-class Radical Party held the balance of power between 1938 and the late 1950s. The last military intervention before 1973 occurred in 1932, when elements of the military held or shared power for four months after the civilian government collapsed under the weight of the Great Depression.³